On the Papers

WHAT'S AT ISSUE? THE CONSTRUCTION OF THE ENGLISH PARAGRAPH, PART I

GEORGE D. GOPEN

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Most people educated in this country were taught that a proper paragraph contained five sentences: The first is the "topic sentence," which states the issue and point of the whole paragraph; the fifth is the "conclusion," which, in the sixth grade, meant a repetition of the topic sentence; and the middle three are the "body"—not a development of thought, but just three examples that support the topic sentence. Go look at the structure of 100 paragraphs in any legal document: You will be hard pressed to find a single one that adheres to this topic sentence model. For schoolkids, it is a good way to learn that structure exists. For professionals, it is a lie.

This teaching model of the paragraph was based on good instincts. First sentence: You tell them what you're going to tell them. Second, third, and fourth sentences: You tell them. Fifth: You tell them you told them. It is orderly. It feels logical. It seems complete. But its intent was to cope with the pedagogical problem of needing something to tell young students about paragraphs. It was easily graded: Two examples? You fail. It was not created to deal with the development of thought—and especially not with complex legal thought.

This pedagogical creation depended greatly on the era in which it was developed—from the late 18th century in Scotland to the late 19th century in America. Children at that time were to be seen and not heard. They were to remain orderly. They were not to embarrass themselves or their parents in public. They were all to resemble the model of the well-behaved, incipiently well spoken child. When summoned to examinations, these children should demonstrate accuracy, succinctness (so as not to be overly heard), and responsiveness to authority. The one-size-fits-all paragraph served these desiderata perfectly.

Translate this model of paragraph structure into a litigative metaphor. The witness (student writer) here is led by the attorney (writing teacher) to produce the perfect five-sentence paragraph:

Attorney: Please tell the Court what you know about this issue.
Witness: I know X.
Attorney: Can you give us some indication why you think this is true?
Witness: Here is Example A.
Attorney: Is there anything else that will lend weight to your observation?
Witness: Here is Example B.
Attorney: Aha. And is there something more that will convince us to believe you?
Witness: Here is Example C.
Attorney: Three examples? It sounds like you know what you're talking about. So tell us again what it is you know.
Witness: I know X.
Attorney: I have no more questions for this witness.

Though it is difficult to explain why, it is clear that the number three suggests to our culture a sense of sufficiency, of almost magical completeness. Evidence of this abounds. Ancient numerology assigned 1 to the male, 2 to the female, and 3 to union between the two. The most populous religion in the world presents us with the mystical equation of 1 = 3, a triune God concept. Folklore is geared to triplets: There are usually three sons of the king, or three magical tasks to perform, or three dogs with eyes of different sizes. Can you imagine your children's response to your reading them "Goldilocks and the *Four* Bears"? "'Who's been sleeping in *my* bed?' said the Papa Bear. 'Who's been sleeping in *my* bed?' said the Mama Bear. 'Who's been sleeping in *my* bed?' said the Adolescent Bear. 'Who's been . . .'" "Aw c'mon, Mom, get ON with it!" They

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know to expect that three will signal closure. Four might as well be a million. And did you ever have a power-hungry track coach start your race by saying, "Ready . . . on your mark . . . now set . . . go!" knowing that at least some of you would leap from the starting line on hearing "now set," knowing that 1-2-3 was how the world functioned?

Did that paragraph seem a bit too long to you? Did you think I had already made my point and should have "gotten on with it"? If so, perhaps it was due to my having given you four, not three, examples of threeness. This number has a hold on us. No wonder we were taught that three examples in a paragraph "prove" your point. If you surround those three with "Here we go" before them and "Now we've arrived" after them, then you've finished the job. And in the sixth grade, you had.

That repetitive opening and closing sentence also has its roots in our artistic subconscious, most straightforwardly demonstrated by the way we write and hear music. Whatever key in which the song (or sonata or symphony) begins is known not as the "topic" key, but as the "tonic" key. It states which "tone" will provide for us a sense of "home." In structurally simple pieces of music—the great majority of songs written up through the 1970s—we are usually aware of what that "home" is and how far away from it we have wandered. We are relieved, or at least we have our expectations fulfilled, when we return to that home. Ninety-nine percent of songs (and, until the 1920s, sonatas and symphonies) resolved at the end to that same "tonic" key in which they started. In the typical ABA song form, the B section wanders into a different but closely related key; then the A section begins by returning not only to the original melody but also to the tonic key. That is why the return to the A section is often the song's most affecting moment.

That otherwise inadequate five-sentence model, however, teaches one important structural truth: Readers will expect that your paragraph will be about whatever greets them up front. If you begin your paragraph with a sentence about the price of kumquats and then discuss world peace for the other eight sentences, most readers will use a good deal of reader energy in looking for the return of the kumquats. The principle of stating the issue of your paragraph up front concords precisely with the reality of how readers read.

In school, the *issue* of a paragraph and the *point* it tries to make are one and the same. "I have so many things to do today. Task number 1. Task number 2. Task number 3. I have so many things to do today." As professional readers, we would not tolerate such prose. If we found someone writing like that (which we never do), we would simply train ourselves not to read the final sentence.

In professional life, the issue states what the paragraph will concern, while the point lets you know why the paragraph was written. "I have so many things to do today. Number 1. Number 2. Number 3. I'm wondering if I should take *two* bottles of 6-Hour Energy."

Professional paragraphs, dealing with sophisticated, complex material, become significantly more challenging to compose than those we churned out in high school, for two main reasons:

1. The issue may often require two sentences, or sometimes even three. But note (this should sound like an echo): It should never be allowed to extend to four. I'll explore that in a later article.
2. The issue and the point are often not the same statement.

Readers—no surprise here—have expectations of where that point will appear. I'll also explore that in a later article. Here I'll oversimplify the matter by stating that the point is expected to appear in one of two places: either (1) up front, at the end of the issue; or (2) at the end of the discussion of that issue, which most often (but not always) means the final sentence. This is the only reader expectation that has a fallback expectation attached to it: If you do not find the point up front, then expect to find it near the end.

I had a friend who took 10 years to write his magnum opus, a really wonderful book about early North American history. It was turned down by over 100 publishers. I believe it was because he loved putting his point dead center in every paragraph. During the year of rejections, he churned out a book about two engaging rascals in early California history, which everyone wanted to publish because they could smell the movie rights. One press, having made him an offer one day too late, told him it would publish instead that big book of his, which they thought would coattail on the success of the smaller one. George F. Will gave the long one a rave review in the *New York Times Book Review*. It went through three printings in 40 days. Everyone assumed the book must be well written and therefore figured out how to crescendo in the middle of a paragraph.

Moral of the story: Put your point anywhere you want—after you are famous. Until then, put it where readers expect to find it. More on all these matters later. ■

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On the Papers

WHAT'S AT ISSUE? THE CONSTRUCTION OF THE ENGLISH PARAGRAPH, PART II

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Miss Grundy, our junior high English teacher, taught us that a paragraph must begin with a "topic sentence." Its purpose is to inform the reader, right at the start, what the issue or point of the paragraph is meant to be. This worked well when we were young and had so relatively little to say; but as adults, it fails us badly. Not only are the issue and the point not always the same in sophisticated, professional prose; but the issue of a paragraph in a legal document can often not be stated in a single sentence. I will discuss "issue versus point" in a later article. Here I will explore what the issue of a professional paragraph (legal, scientific, business—it matters not) is expected to be in terms of its shape and size.

Miss Grundy was right about one thing: Readers want to know what a paragraph will deal with as soon as possible. But a lawyer's stated issue often requires more than a single sentence to be adequately expressed.

Quite often—in some documents, up to 50 percent of the time—the issue of the paragraph may require two sentences. Here are examples of how issues can easily take two sentences to state:

- Here is where we have come from. Now here is where we are going.
- You may have thought X. Actually, it's Y.

Occasionally—not often, but often enough to require our recognizing it—an issue may have to extend to three sentences:

- Here is where we have come from. It wasn't helpful enough to answer our question. So here is where we must go from there.
- You may have thought X. You may even have throught Y. Actually, it's Z.
- Here is a general thought. Here is a more narrow concern within that generality. Within that more narrow concern, here is the specific thought that we will explore here.

Is there such a thing as a four-sentence issue? No. I could write one easily enough:

- You may have thought X. You may even have thought Y. You might even imagine Z. Actually, it's Q.

I could write it, but my reader will not read it. When a reader finishes the third sentence of a paragraph and has not yet perceived a coherent issue, the reader tends to give up hope. The rest of the paragraph is read, if at all, as a kind of fact-finding mission, with the hope that coherent sense will retroactively become apparent at the paragraph's end.

How and when do we, as readers, know how many sentences are involved in a given paragraph's issue? How? The issue has just ended when we sense we are beginning to read the resultant discussion. When? We can never know how long an issue is until we are convinced the issue is over. This is both a complicated matter and a fluid experience, as we shall see.

Every first sentence of a paragraph *could* be its issue. Give me any sentence you wish: I can make it a one-sentence issue by writing the rest of that paragraph about your sentence. As a result of this uncomfortable fact, a reader can never be sure a paragraph's first sentence is its issue until at the least the second sentence is well under way.

Here is the first sentence of the paragraph we will be reading in slow motion:

1. The purpose of contract law is to create a legal existence and needed resolutions for joint undertakings to which parties have agreed.

If that indeed is the issue of the paragraph, what does the rest of paragraph go on to discuss? Answer: Anything this sentence has already brought to the table. "Legal existence," "existence and

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resolution," "parties' joint undertakings." If a discussion of any of these begins in the second sentence, we might well have a one-sentence issue here.

Here is the paragraph's second sentence:

2. It would seem, at first, that the business of this kind of law would simply be to enforce the agreement to which the parties had submitted themselves.

When I try to imagine how this might begin a discussion of the material in the first sentence, my head goes cloudy. Although it is not impossible for the first sentence to be a one-sentence issue here, it is hard for me to imagine where we are going with this. On the other hand, the possibility of a two-sentence issue makes more sense. While the first sentence makes a general statement about contract law, the second sentence might suggest a narrower focus on "the business" of contract law—enforcement. If it is a two-sentence issue, then the third sentence should begin a discussion of that "business."

Here is the third sentence:

3. It would seem, with equal surety, that in no way should a court "*make* a contract" for the parties.

This does not make good sense as the beginning of a discussion of the first two sentences combined. It speaks not of the "business" of the law, but rather of a kind of "non-business": Courts *don't* "make contracts." It makes better sense to see this as the completion of a three-sentence issue. If the paragraph were to be about whether or not courts "make contracts" for the parties, the first three sentences would work nicely to prepare us for the ensuing discussion.

That turns out to be the case. Watch the way in which the fourth through seventh sentences wind their way through the problems of oversimplifying the court's role in ruling on contract cases, winding up eventually in the direct repudiation of the paragraph's third sentence.

The fourth sentence leads us from the claims of its two predecessors to the limited topic of "interpretation":

4. If both these seemings are true, the court's only job would be that of interpretation: It would determine what the parties meant from what the parties said.

The fifth sentence tacks the powerful word "But" onto the previously oversimplified word "interpretation":

5. But the act of interpretation is in no way a simple task: (1) "Words strain, / Crack, and sometimes break, under the burden, / Under the tension, slip, slide, perish, / Decay with imprecision, will not stay in place, / Will not stay still," [T.S. Eliot, *Burnt Norton*, in Four Quartets (Harcourt 1943)]; (2) people do not and cannot always (or ever) cover everything that is or might in the future be affected by the contract; and (3) there are legal limitations that cannot be exceeded by an agreement made by private parties.

The difficulties of "interpretation" having thus been established, the sixth sentence can far more simply and concisely label the characteristics of "expression" that make interpretation so complex:

6. Therefore, the explicit expression of a contract can be, and often is, incomplete, ambiguous, and even incomprehensible.

Having begun from the three-sentence issue that raises the question of whether courts ever "make contracts" for the parties, and having discussed the complexities of the act of interpretation, the author can use the final sentence to answer the question raised by the issue:

7. By the sheer difficulty of the act of interpretation in such cases, like it or not, courts are sometimes forced to "make a contract" for the parties.

I urge you to go back now and read the seven sentences as a continuous, flowing paragraph. (Space prohibits my reproducing it here.) It makes sense, does it not? One could argue with individual details in any of the sentences, but we know what the author was trying to say.

Stating the issue up front is essential, because of a major expectation readers have about the shape and structure of paragraphs: Because they expect the issue to be articulated right at the start, they will read whatever comes first—whether "first" means one, two, or three sentences—as being the issue of the paragraph. To create an example of this, let's revise the fourth sentence as follows:

4. A court's only job in adjudicating a contract dispute seems to be that of interpretation: It would determine what the parties meant from what the parties said.

Starting from this revised fourth sentence, read the sentences in this order: revised 4, 5, 6, 7, 1, 2, and 3. Don't you feel lost in a forest, wandering without direction? If the revised fourth sentence is the paragraph's issue, it becomes a badly written paragraph indeed.

Miss Grundy wasn't teaching law students. Legal issues, just like the issues of schoolchildren, need to be stated up front; but the legal ones can take one, two, or three sentences to get the job done. Somewhere in the back of your mind, remind yourself never to let the issue spill over into a fourth sentence. In rhetoric, four can seem a million. ■

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On the Papers

CONNECTIVITY: THE CONSTRUCTION OF THE ENGLISH PARAGRAPH, PART III

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A unit of discourse is any group of words that has a beginning and an end. A sentence begins with its capital letter and ends with its period: As readers, we know how to take a mental breath to summon the "sentence energy" that we will use in making that journey from beginning to end. A paragraph begins with an indentation (or a doubled space from the previous paragraph) and ends when its last sentence is visually separated from the paragraph that follows: In order for us to follow the paragraph from beginning to end, without stumbling, each sentence must be connected smoothly and firmly to both of its neighbors. Taking care of those connections gives the writer greater control over the reader's journey.

We will explore this question of connectivity by looking at the first five sentences of a randomly chosen paragraph from *Leitner v. Braen* (51 N.J. Super. Ct. App. Div. 31, 143 A. 2d 256 (1958)).

> The concept of mutual assent is customarily stated as one of the primary requisites to the formation of an informal contract. Such mutual assent is, however, unimportant except as it is manifested by one party to the other, generally by a communicated offer and acceptance. So the obligation depends not on the so-called real intent of a party, but on that expressed. The phrase, "meeting of the minds," can properly mean only the agreement reached by the parties as expressed, i.e., their manifested intention, not one secret or undisclosed, which may be wholly at variance with the former. It is in this sense only that the formation of a contract can be said to require the "meeting of the minds" of the parties.

For a reader not trained in the law, the journey through this kind of prose is uncomfortable, foggy, impeded. For a law student, it is part of the painful rite of passage to becoming a professional. For a lawyer, it is a journey through familiar terrain, comprehensible if the substance is already known, but still part of the professional grind. It does not have to be so. Knowing *where* in a sentence readers look for the arrival of certain kinds of substance allows us to revise effectively, facilitating two kinds of sub-journeys in a paragraph: (1) the progress from the capital letter of each sentence to its period and (2) the connecting of each sentence to its neighbors. Then both the sentences and the paragraph will read more cohesively and coherently.

We will concentrate here on three crucial reader expectations in English:

1. Readers read a sentence as being the story of whoever or whatever is the sentence's grammatical subject.

2. Readers give extra emphasis to whatever occupies the sentence's "stress position." A stress position is any moment when the grammatical structure comes to a full halt—next to a colon, semicolon, or period. (It can never happen at a comma.)

3. Readers want to know as soon as possible how a new sentence should connect backward to its predecessor.

Important note: To make all my proposed revisions, I will be guessing at the author's intention. If I'm right, the revision will be an improvement. If I'm wrong, well, that's the fault of the author: He was supposed to have made his intention clear.

Here again is the first sentence:

1a. The concept of mutual assent is customarily stated as one of the primary requisites to the formation of an informal contract.

I am guessing that this sentence is to be the story of "the formation of an informal contract"; I am also guessing the stress-worthy star of the show is "the concept of mutual assent." Both are in the wrong place. Put them in their rightful places, and the sentence's meaning surfaces more clearly, more effortlessly for the reader:

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1b. One of the primary requisites to the formation of an informal contract is the concept of mutual assent.

We are now leaning forward to hear more about "mutual assent."

Let us examine the next two sentences.

2a. Such mutual assent is, however, unimportant except as it is manifested by one party to the other, generally by a communicated offer and acceptance.

3a. So the obligation depends not on the so-called real intent of a party, but on that expressed.

Sentence (2a) seems to begin helpfully. "Such mutual assent" is both the "whose story" of the second sentence and the backward link to its predecessor. So far, so good. In (2a) and (3a), what are the terms here the author wanted us to stress? I'm guessing: the concept behind "manifested"; "offer and acceptance"; "real intent"; and "expressed." That's four stress-worthy terms; but there are only two stress positions. I also suspect that a stress-worthy item absent from these sentences is the word "words": "Words" = how the contract is "manifested."

The two sentences are so intertwined that we must shake them together and redistribute their contents to create the four needed stress positions in a logical order. To fashion four stress positions in only two sentences, we can rely on that too little used but extraordinarily effective punctuation mark, the semicolon.

2b. "Mutual assent," however, is irrelevant except as the parties have manifested it to each other expressly in words; that is generally accomplished by an articulated offer and acceptance.

3b. So the obligation between them depends not on either party's so-called "real" intent; it depends entirely on what their words expressed.

For two reasons, the seeming duplication of "expressly in words" and "words expressed" in two of these stress positions is not overkill: (1) Both "expressed" and "words" deserve emphasis; and (2) the concept of the two combined is so essential to the formation of a contract that it deserves the emphasis created by their repetition in reversed order.

On to the fourth sentence:

4a. The phrase, "meeting of the minds," can properly mean only the agreement reached by the parties as expressed, i.e., their manifested intention, not one secret or undisclosed, which may be wholly at variance with the former.

Surely, the prepositional phrase "with the former," which is the occupant of the sole stress position in this 36-word sentence, cannot be its sole piece of crucial information. I am guessing that the author wanted us to stress two items: (1) the term "meeting of the minds," and (2) the concept of an undisclosed intention. He has burdened us by introducing the "meeting of the minds" up front, in the "whose story" position. That term is new information. It should be one of the fruits of this sentence, not its starting place. In addition, it makes no obvious connection backward to the third sentence. The real backward link—"agreement . . . expressed"—comes too late to be of optimum help. We need to restructure the revision so it will repair these three violated reader expectations—the misplaced backward link, the wrong "whose story," and the badly filled stress position. We need a stress position for "undisclosed intention"; and we need another for "meeting of the minds." The resulting two-sentence revision reads easily and connects helpfully:

4b. That explicit expression of their agreement—their manifested intention—cannot be superseded by any conflicting, secret, or undisclosed intention. Only the explicit expression can represent a "meeting of the minds."

Look now at the original fifth sentence:

5a. It is in this sense only that the formation of a contract can be said to require the "meeting of the minds" of the parties.

There is nothing new in this sentence. It has all already been said. (Don't you hate unnecessary repetitions when you are reading for a living?) Why did the author feel the need to produce the fifth sentence? Again my guess, but one of which I feel sure: He knew that he had failed properly to stress the right materials in his previous sentences. To make sure he would get his point across, he needed to restate it—this time more clearly and more succinctly. But even then, he ended weakly with a prepositional phrase—"of the parties"—diminishing the sense of arrival and closure that "meeting of the minds" would have achieved by living next door to the period.

We no longer need the fifth sentence. Cut it. Here is our result:

> One of the primary requisites to the formation of an informal contract is the concept of mutual assent. "Mutual assent," however, is irrelevant except as the parties have manifested it to each other expressly in words; that is generally accomplished by an articulated offer and acceptance. So the obligation between them depends not on either party's so-called "real" intent; it depends entirely on what their words expressed. That explicit expression of their agreement—their manifested intention—cannot be superseded by any conflicting, secret, or undisclosed intention. Only the explicit expression can represent a "meeting of the minds."

How does this reading compare with your journey through the original? ■

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On the Papers

THE POINT OF A PARAGRAPH AND WHERE TO FIND IT

THE CONSTRUCTION OF THE ENGLISH PARAGRAPH, PART IV

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"The issue states what the paragraph will concern, while the point lets you know why the paragraph was written." I have been exploring English paragraph structure for three essays in this series, trying to explain how a paragraph's "issue" (1) may take one, two, or three sentences to state, and (2) is a different concept from the paragraph's "point." In this fourth essay, we turn our attention to *where* in a paragraph the reader expects to encounter its point.

Must every paragraph have a point? No. Many a fine and necessary paragraph merely narrates: "This happened; then that happened; etc." We can call these "narrative paragraphs." They exist so that enough of a story may be told in order for the writer later on to be able to make a point.

Aside from narrative paragraphs, do all other paragraphs have to state a point explicitly? It is most often—not always—a good idea to state a point instead of merely implying a point. Sometimes it is impolitic or unnecessary or unkind to be blunt enough about a point to state it in a single sentence; but if you care that your reader understand your point, you are best to articulate it explicitly and concisely.

But you have to go further than that. It is not enough to drop your point just *somewhere* in your paragraph; you would do well to place it in a structural location where readers are most likely to look for it. With all the reader expectations I have been exploring through the previous 21 articles in this series, I have been able to locate for you a specific and unique place where readers look for certain kinds of information. Whose story is this sentence? Look to the grammatical subject. What is going on in this sentence? Look to its verb. What is the most important piece of information in this sentence? Check out any moment of full syntactic closure—at a colon, semicolon, or period. Paragraphs, however, are different, where the placement of their point is concerned. This is the only reader expectation that comes equipped with a fallback expectation: If it's not here, then go look there. Both the "here" and the "there" depend on the nature of a paragraph's structure.

Think of a paragraph having two main structural locations, with an interesting third thrown in every once in a while. The first location, starting at the paragraph's beginning, can be considered the issue position. It is not a thing, but rather a place. It is where you should state the paragraph's issue. (For a discussion of the length and content of the concept of "issue," see *What's at Issue?: The Construction of the English Paragraph, Part II*, 42 LITIGATION 16 (Summer 2016).) As that article demonstrates, people will read a paragraph as being about whatever shows up in the issue position. You can get away with just implying, not stating, a point; but you cannot get away with not stating an issue as explicitly as possible. The opening one, two, or three sentences will be considered the issue whether you wish it so or not. Let the wrong information inhabit that location, and your reader will be lost, constantly looking for the wrong thought development.

Following the statement of the issue, the next structural location we could call the discussion position. You've put the issue in front of us; now tell us whatever we need to know about it—before you want us to take the mental breath provided by the space between paragraphs.

The third, tantalizing, occasionally useful structural location takes its place as the final sentence of a paragraph. We can call it the "coda." It has many uses: It can offer an opportunity to repeat the point; it can provide another example or quotation, perhaps unnecessary, but of which you have become so enamored that you cannot bear to leave it out; it can turn the rest of the paragraph on its head; or it can introduce a bit of wit or humor, disruptive had it appeared in the midst of heavy thinking, but well earned and something of a delight when it comes after the hard work of thought development has been completed.

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That is the shape of a non-narrative paragraph: The issue position, filled with an issue of one, two, or three sentences; the discussion position, extending as long or short as it need be for the thought to be completed; and, on special occasions, a coda, with its emphatic, surprising, or entertaining function. Where, then, does the point arrive? The answer is not nearly as concise as it is for other reader expectations.

Here is the technical definition of expected point placement: Readers expect the point to be either (1) the last sentence of the issue or (2) the last sentence of the discussion.

Here is the cognitive definition, which is easier to understand: Readers expect to encounter the point either (1) just before the discussion of it begins or (2) just as the discussion of it is ending.

Miss Grundy, our secondary school English teacher, taught us that every paragraph must begin with a "topic sentence," whose purpose was to state the issue/point of the paragraph. In the eighth grade, our issue was always our point, requiring no more than one sentence to state. "I like the spring because of the pretty birds." That was it. Summon three examples of birds (robins, cardinals, and blue jays); give each a sentence of its own ("I like the spring because of the blue jays"); and then repeat your topic sentence at the end as your "conclusion"—"I like the spring because of the pretty birds." Such a corset-like paragraph structure cannot possibly be expansive enough for legal writing. Legal writing requires a more complex structural possibility: "The issue states what the paragraph will concern, while the point lets you know why the paragraph was written."

Where do we expect the point to arrive in sophisticated prose? The question might be better asked by substituting *when* for *where*. Thought is fluid. Sentences enter our reading minds not as bricks, which must be pasted together to construct an edifice, but rather as flowing water, gathering in our mind as a pool, with each subsequent sentence flowing into its predecessors, enlarging the pool, and perhaps changing its shape. (We don't want the shape to change after we've read three sentences. By then, the issue should have been shaped and captured.) Here then are all the locations in which we might expect the point to appear:

- In a one-sentence issue paragraph, the first sentence (the last of the issue)
- In a one-sentence issue paragraph, the last sentence of the discussion
- In a two-sentence issue paragraph, the second sentence (the last of the issue)
- In a two-sentence issue paragraph, the last sentence of the discussion
- In a three-sentence issue paragraph, the third sentence (the last of the issue)
- In a three-sentence issue paragraph, the last sentence of the discussion.

And should a paragraph happen to end with a coda, then the point can reasonably be located as the penultimate sentence, that sentence being the end of the discussion. With such a variety of structural possibilities, the point might effectively appear as the first, second, third, last, or next-to-last sentence in a paragraph. It is not so much a *where* as it is a *when*; it is expected to come *as* the issue is ending or *as* the discussion is reaching completion.

I will devote a future article to exemplifying these different placements. (Quoting paragraphs takes up so much space!) Rest assured: Paragraph shape and structure tend to vary widely in the hands of any clear, forceful writer. I happen to have on my desk Mr. Justice Murphy's dissent in the (in)famous case of *Korematsu v. United States*, the Supreme Court case from 1944, upholding the military's decision to relocate all Japanese into concentration camps. His dissent contains 12 paragraphs. Here is a table that lists each paragraph's issue length and point placement. Miss Grundy, hide your eyes.

Just look at the variety of structure. I am sure Mr. Justice Murphy did not sit there, consciously choosing different issue lengths and point placements for the sake of variety or elegance; instead, he was trying to make his prose fit the needs of his content. Differently shaped thoughts demand differently shaped paragraphs. There is much more to be said—in subsequent articles. ■

The 12 Paragraphs of Justice Murphy's Dissent in *Korematsu v. United States* (323 U.S. 214 (1944))

Paragraph	Number of Sentences in Issue	Point at End of Issue	Point at End of Discussion?	Coda?
1	one		Yes	
2	one	first sentence		
3	three	third sentence		Yes
4	two	second sentence		
5	three		Yes	
6	one		Yes	
7	one	first sentence		
8	two	second sentence		
9	one		Yes	
10	one		Yes	
11	three	third sentence		Yes
12	one		Yes	

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On the Papers

FIVE VARIETIES OF POINT PLACEMENT: THE CONSTRUCTION OF THE ENGLISH PARAGRAPH, PART V

GEORGE D. GOPEN

The author is Professor Emeritus of the Practice of Rhetoric at Duke University.

In previous articles in this series on paragraph structure, I have claimed that if a paragraph is born to make a point, that point should most often be articulated explicitly, in a single sentence. The placement of that point sentence is crucial: Readers expect to find it either (1) as the last sentence of the paragraph's issue (and that issue can be one, two, or three sentences) or (2) at the end of the discussion that flows from that issue. This article explores when each of these two point placements works best.

Where point placement is concerned, we can recognize five distinct paragraph types.

Type 1: Opening Paragraphs

The opening paragraph of a document is unique. Readers have remarkably rigid expectations of what to find where. They almost always expect that the point will be articulated in the final sentence.

It makes sense. As a reader, you do not want to hear the writer introduce herself in a sforzando, followed by a decrescendo: "HERE IS MY POINT. This is what I sound like. We'll be spending some time together. Hi there." They want to meet the reader in exactly the opposite order of introduction: "Hi there. We'll be spending some time together. This is what I sound like. Are you ready for my point now? HERE IT IS."

The opposite, unexpected order produces an experience something like when you walk into a movie theater five minutes after the show has started. You anxiously try to take off your coat and to settle into your seat without spilling the popcorn. How much nicer it would have been to get there with time to spare, to take off your coat at leisure, to settle comfortably into your seat, and then to pop a few kernels of the popcorn into your mouth to give you the Proustian sense that the movie experience can now start.

Save the point for the end of opening paragraphs. Your readers will appreciate it.

Type 2: Final Paragraphs

The same holds true for final paragraphs: Put the point at the end. It will please your readers, who want to finish your text by experiencing a significant feeling of closure. If you do it backwards, it feels backwards:

"So you see, I WIN! Because I have generated all these persuasive concepts. And I've done it by putting together all these individual details."

No, your reader wants a sense of crescendo to the final chords:

"So, from all these individual details, I've put together all these persuasive concepts, **as a result of which, I WIN!"**

Type 3: Medial Paragraphs

We can refer to all paragraphs other than openers and closers as medial paragraphs. For them, the reader's default value expectation is that the point will tend to appear at the end of the issue, before the discussion begins. Most of the time, readers want to flow forward with your thoughts in this orderly fashion: (1) Here's the issue, up front, where I expect it to be; (2) at the end of the issue, I find the point that will be discussed; and (3) now I am ready for the discussion of this point.

You are safer in putting your point toward the beginning because busy readers, trying to get as much as they can as fast as they can, will tend to dip a toe in the paragraph's water to see if it is worth their while to swim through it. We skim in exactly this way. Because many of your readers may well choose not to read the whole paragraph, you are best to put that point up front, while you still have your audience.

Type 4: Dramatic Medial Paragraphs

What if a medial paragraph would benefit from the drama created by the discussion

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leading inexorably up to a climactic moment? That can be done: issue; discuss, discuss, discuss; crescendo-ing up to the POINT. But if you wish to avail yourself of such a progression, you should take the three following concerns seriously:

- Insofar as possible, the reader should be made aware at the end of the issue that the point has not yet been made.
- The reader should feel the pressure building as the paragraph builds toward the delivery of its point, urging readers to stay the course.
- The discussion must be understandable without the point having been made in advance.

Type 5: Complex Dramatic Medial Paragraphs

What if the paragraph would benefit from a dramatic build to the point at its end, but the reader could not understand the discussion without having encountered the point beforehand? In that case, put the point both at the end of the issue and at the end of the discussion.

When to Override Expectations

Those five types will cover most of your needs. However, a paragraph is a large enough unit of discourse for you to be able to override these default value reader expectations. For example, you can make two points in a paragraph if you wish; but your reader must be led to expect there will be two:

> In dealing with such a conflict, two separate concerns must be considered. The first of these is. . . . [Three more sentences.] The second concern, equally important, is. . . .

Knowing what your readers generally expect will lead you to understand when you have to take matters into your own hands. We have a name for such explicit reading instructions: We call them metadiscourse.

Metadiscourse is discourse about discourse. I began the second paragraph of this essay with a helpful map of metadiscourse: "Where point placement is concerned, we can recognize five distinct paragraph types." When the reader needs such guidance to form an expectation concerning the shape of the text, metadiscourse is of great help. When it annoys your readers by treating them like unobservant clods, metadiscourse is a very bad thing indeed: "Each of these types will be presented with its own rubric." Aaargh! I can see that, thank you.

Question

Why are opening and closing paragraphs such exceptions to the predominant expectation that the point will appear just before its discussion begins? The answer is simple: At the end of a first or last paragraph, you can count on your readers still being with you. Almost no one gives up on a text midway through the first paragraph: They *know* that the point will be waiting for them in the final sentence. Almost no one will quit midway through a final paragraph: Having come so far, they wish to experience the satisfaction of reaching the final moment, the moment of closure. No concertgoer wishes to leave with 90 seconds remaining in the featured piece—even when disgusted by the performance to that point.

There is yet another reader expectation attached to the point appearing at the end of opening paragraphs—and it is the single most rigid reader expectation of them all: Readers presume that the last sentence of the opening paragraph will state not only the point of that paragraph but also the "contract" the writer is extending to the reader as to what the document as a whole will produce. We can call that sentence the contract sentence. My colleagues Joseph Williams and Gregory Colomb demonstrated this dramatically but never published the results of their experiment.

Here is what they did: They took a handful of graduate student essays that had all received the grade of A and made a revised version of each by changing only the contract sentence. They substituted there a sentence that, though reasonable and well written, did *not* give the reader a sense of what the text as a whole would address. They then sent packages of essays—each containing half originals and half revised versions—to English professors across the country, with a small honorarium, asking them to grade the essays and to offer two or three sentences of support for their grades. All the original versions received A or A–, with suitable praise for the content and the expression; but all the revised versions received B, C, or even D, with complaints about poor thought development, unfocussed issues, and substandard writing. Again, this is the most rigid of all reader expectations.

One exception: If your text requires multiple paragraphs to introduce the rest of the document, the contract statement should be the last sentence of the final introductory paragraph. When that is the case, you will aid the readers greatly if you give them an obvious visual clue that the introduction will take more than a single paragraph. Use a quadruple space before the next paragraph, or a row of asterisks, or a rubric—anything so readers can tell immediately they are being presented with a multi-paragraph introduction.

As with sentences, paragraphs carry within them a reader's manual in the form of their structure. Instinctively, we know where to look for what. ■

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On the Papers

HOW PARAGRAPHS SPEAK TO EACH OTHER

GEORGE D. GOPEN

The author is Professor Emeritus of the Practice of Rhetoric at Duke University.

It should seem obvious that, for accurate communication to take place, individual units of discourse must speak to each other: Words must hang together to make sentences, sentences to make paragraphs, and paragraphs to make documents. And yet, when we teach writing at the grammar school and high school levels, we tend to concentrate on these units of discourse in isolation from each other. Fair enough, perhaps, since the student brain at those stages has not developed far enough for it to deal extensively with the all-important missing subject—connectivity. Best save that for college and professional schools, when students will have brains well enough developed to tackle complex and sophisticated thought.

But, alas, writing courses taken at those higher levels still fail to address the problem of connectivity in any way that really works to help writers reach and control their readers. Little attempt is made to teach how sentences can connect to form paragraphs; and even less of an attempt is made to help writers control the connectivity from one paragraph to another. This article explores how paragraphs can be constructed to help readers step with confidence from one to the next, thus allowing thought to flow from the beginning of a document to its end.

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In earlier articles in this series, I have demonstrated what connections can be made between sentences so that they will lead seamlessly forward, allowing the writer's thought slowly to unfold itself to the reader's consciousness. The control over those sentence-to-sentence connections is in many ways similar to the control over a succession of paragraphs—but not altogether. We will look first at the similarities.

At the beginning of reading a new sentence, a reader needs to know precisely how this new one connects to its predecessor. (*Cf. The Progress of Thought: To Move Forward, Link Backward*, 42 LITIGATION 16 (Winter 2016).) Therefore, good sentences will present that linkage as soon as possible, preferably in the first few words.

There are two structural locations in that previous sentence that will be the easiest for the reader to be able to recall and to which a connection can best be fashioned: (1) the previous sentence's grammatical subject; and (2) the material located at the very end of that sentence, in its stress position.

(1) As I explained in four previous articles in this series, most readers will interpret a sentence as being the story of whatever person, thing, or idea appears as its grammatical subject. Example:

> Clark was outraged at the long delay in response to her offer by Denison.

This will be perceived by most readers as the story of Clark. If the next sentence is to continue that story, it too should start with a reference to Clark. Connectivity is then easily accomplished for the reader.

(2) The other easiest backward link to the sample sentence would be to "Denison," since he occupies that all-important structural location I call "the stress position." (For discussion of the stress position, *see The Importance of Stress: Indicating the Most Important Words in a Sentence*, 38 LITIGATION 20 (Fall 2011).) To further explain Clark's outrage, the next sentence might well concentrate on what Denison did. That new sentence, therefore, might well begin with "Denison," whose story it will now be.

Can sentences effectively link back to something in the middle of the previous sentence? They can; but it requires more effort than one would wish the reader to exert. Example:

Clark was outraged at the long delay in response to her offer by Denison. Such a delay was usually construed as sufficient grounds to withdraw the offer.

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To make a backward link to the word "delay," we have to leap the tall building that is "in response to her offer by Denison." If that indeed was the author's intention, note how much easier the reader's task of connection would be if the first sentence was altered to allow the "delay" to inhabit the stress position:

> Clark was outraged at Denison's long delay. Such a delay. . . .

For all of these sentence-to-sentence connections, the same is true for paragraphs. A backward link to the previous paragraph is easiest for the reader to make if it connects to the same two locations: (1) the beginning of the previous paragraph, where its issue was stated; or (2) the end of the previous paragraph—the nearest neighbor to this new paragraph.

Backward connections to the middle of the previous paragraph are, of course, logically possible; but they are much harder for the reader to perceive. Why should this be so? The answer might well lie in the work done by Bell Labs in the 1940s on memory. They demonstrated that people remember the ends of things best, the beginnings second best, and the middle of things at a significantly lower level of recall. Those findings seem to be replicated in a reader's experience of both a sentence or a paragraph.

But, compared with sentences, paragraphs are so much longer—and, therefore, so much more malleable. Reader expectations, while still functioning, become more like default value expectations, changeable by the presence of explicit clues from the writer. For example, while readers normally expect a paragraph to make a single point, that expectation can be changed by the writer announcing there will be two: "These recent developments leave us but two choices: . . ." We then expect to find both of those choices in the present paragraph.

A paragraph's length can make it somewhat unclear as to the size of its beginning or its end. A good backward link reaches back not necessarily to the previous paragraph's first sentence, but rather to its "beginning"—which well might reach into its second sentence or occasionally even to its third. If so, that multi-sentence "beginning" must constitute a single unit, so it can be referred to as a unit.

The same is true of a paragraph's "end." If the last two sentences blend together to form a single unit, that unit can be considered its "end."

In addition, an entire paragraph may blend together to state a single concept or argument or claim. That single unit of the whole becomes a possible reference point for the next sentence's backward link.

The mere inclusion of all the right facts and legal concepts in a paragraph is insufficient to lead a reader's mind through the forest of the text's continuing thought.

To explore some of these options, let us look at the first few paragraphs of Justice Brennan's 1973 decision in *Frontiero v Richardson*, 411 U.S. 677, 93 S. Ct. 1764, 36 L. Ed. 2d 583 (1973).

The question concerned whether a female member of the armed services could claim her spouse as a "dependent" for obtaining increased benefits (lodging and health) on an equal footing with males. Under the statutes at the time, a serviceman could claim his wife as a dependent whether or not she was actually financially dependent on him; but a female could not claim her husband unless he actually was more than 50 percent dependent on her financially.

Mr. Justice Brennan for the majority.

A. There can be no doubt that our Nation has had a long and unfortunate history of sex discrimination. Traditionally, such discrimination was rationalized by an attitude of "romantic paternalism" which, in practical effect, put women not on a pedestal, but in a cage. Indeed, this paternalistic attitude became so firmly rooted in our national consciousness that, 100 years ago, a distinguished Member of this Court was able to proclaim:

> ". . . The natural and proper timidity and delicacy which belongs to the female sex evidently unfits it for many of the occupations of civil life. The constitution of the family organization, which is founded in the divine ordinance as well as in the nature of things, indicates the domestic sphere as that which properly belongs to the domain and functions of womanhood. . . . The paramount destiny and mission of women are to fulfil the noble and benign offices of wife and mother. This is the law of the Creator."

B. As a result of notions such as these, our statute books gradually became laden with gross, stereotypical distinctions between the sexes, and, indeed, throughout much of the 19th century, the position of women in our society was, in many respects, comparable to that of blacks under the pre-Civil War slave codes. Neither slaves nor women could hold office, serve on

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juries, or bring suit in their own names, and married women traditionally were denied the legal capacity to hold or convey property or to serve as legal guardians of their own children. . . . And although blacks were guaranteed the right to vote in 1870, women were denied even that right—which is itself "preservative of other basic civil and political rights"—until the adoption of the 19th Amendment half a century later.

C. It is true, of course, that the position of women in America has improved markedly in recent decades. Nevertheless, it can hardly be doubted that . . . women still face pervasive, although at times more subtle, discrimination in our educational institutions, on the job market and, perhaps most conspicuously, in the political arena. . . .

D. Moreover, since sex . . . is an immutable characteristic determined solely by the accident of birth, the imposition of special disabilities upon the members of a particular sex because of their sex would seem to violate "the basic concept of our system that legal burdens should bear some relationship to individual responsibility. . . ." . . . And what differentiates sex from such nonsuspect statuses as intelligence or physical disability, and aligns it with the recognized suspect criteria, is that the sex characteristic frequently bears no relation to ability to perform or contribute to society. As a result, statutory distinctions between the sexes often have the effect of invidiously relegating the entire class of females to inferior legal status without regard to the actual capabilities of its individual members.

E. We might also note that, over the past decade, Congress has itself manifested an increasing sensitivity to sex-based classifications. [Three examples described and cited.] Thus, Congress has itself concluded that classifications based upon sex are inherently invidious, and this conclusion of a coequal branch of government is not without significance to the question presently under consideration.

F. With these considerations in mind, we can only conclude that classifications based upon sex, like classifications based on race, alienage, or national origin, are inherently suspect, and must therefore be subjected to strict judicial scrutiny. Applying the analysis mandated by that stricter standard of review, it is clear that the statutory scheme now before us is constitutionally invalid.

So spake Justice Brennan. Let us investigate the backward links for each of these paragraphs.

Paragraph B's backward link to paragraph A: "As a result of such notions," which begins paragraph B, refers us directly to the material that ended paragraph A. This is equivalent to a sentence linking backward to the stress position of its preceding sentence.

C's backward link to B: C begins by linking backward to the beginning of B. This is equivalent to a sentence linking back to the beginning, the "whose story is this?" part of its preceding sentence.

D's backward link to C: Instead of linking back to a particular part of C, D follows logically from the forward motion of the entirety of C.

E's backward link to D: E follows logically here by offering an exception or an opposition to all the material in D.

F's backward link to E: F begins by linking backward to the entire development of thought in paragraphs A through E.

Each of these five backward links between paragraphs is different, demonstrating how various these linking mechanisms can be.

However, they all share the action of making their linkage as clear as possible; and each link appears as early in the paragraph as possible. The reader is thus carried consistently forward from one paragraph to another.

Great difficulties would arise for the reader if even one significant sentence of a paragraph were to be dislocated elsewhere in the paragraph, thus destroying the backward link and making that sentence more harmful than helpful to the reader's progress. To see how harmful this could be to logical flow, reread paragraph D, moving its last sentence to the beginning of the paragraph. Can you see the damage done to the paragraph-to-paragraph flow of the thought?

We read from left to right and through time. The mere inclusion of all the right facts and legal concepts in a paragraph is insufficient to lead a reader's mind through the forest of the text's continuing thought. The writer would perhaps not be aware that anything bad was happening to the reader, because the writer already knew what the logical progression was supposed to be. It is not acceptable that the writer be able to follow the thought if the reader is not made constantly aware of all the necessary linkages.

It is insufficient to fashion a paragraph so that it is merely *capable* of meaning that which you wish it to mean. To attain the level of "sufficient," your paragraph must be able to achieve both of the following accomplishments:

(1) Each paragraph must be filled with all the necessary material.

(2) The paragraphs must connect clearly to their predecessors. ■

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